

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

NIGERIAN LEGAL SYSTEM II INFERIOR COURTS

Sharia Courts

The Sharia Courts are empowered to exercise jurisdiction and power over all persons professing the Islamic faith; and any other person who does not profess the Islamic faith but who voluntarily consents to the exercise of the jurisdiction of sharia courts by **section 5(1)(a) & (b) of the Sharia Courts (Administration of justice and certain consequential changes) law 1999 of Zamfara State**. The applicable law and rules of procedure for the hearing and determination of all civil and criminal proceedings before the sharia courts shall be prescribed under the Islamic law i.e the Holy Quran, the hadith and sunnah of prophet Muhammed, isihsan etc.

Appeals shall lie from the decisions of the Sharia courts in civil or criminal proceeding to the Upper Sharia Courts. Appeals from the decisions of Upper Sharia Courts lie to the Sharia Court of Appeal. The Sharia Court of Appeal has the jurisdictions to hear and determine all appeals from the decisions of the Upper Sharia Court sitting in its original or appellate jurisdiction in all civil or criminal procedure.

Customary Court of Appeal

By the provision of **section 280 (1) of the 1999 Constitution (as amended)**, **States are empowered to establish a Customary Court of Appeal where the need arises**. The Court consists of a President and such numbers of judges as may be prescribed by the House of Assembly of a State. See **section 285(2) of the 1999 Constitution (as amended)** which provides that when exercising jurisdiction conferred upon it, **a Customary Court of Appeal is duly constituted with three judges of that Court**. Also, by **section 282 (1)**, the Court has both appellate and supervisory jurisdiction in civil proceedings involving questions of customary law.

Appeals from the Customary Court of Appeal goes to the High Court where it raises questions of general law. In **Babang Golok v. Mambok Diyalpwam (1990)3 NWLR (pt.139) 411**, where the Supreme Court held that by virtue of **section 245 (1) of 1999 Constitution (as amended)**, there was only one right of appeal from the decision of a State Customary Court of Appeal and that right has to do with question relating to customary law alone.

Customary Courts

Prior to 1956, it was known as native courts. In 1957, it was changed to Customary Court. The Courts were established by warrants signed and issued by the Governor of the State. Such warrant normally specifies the name, grade, composition and territorial jurisdiction of the Court

it has established. However, by **section 6 of the 1999 Constitution (as amended)**, the National and State Houses of Assembly have the power of establishing inferior courts.

They have power to hear land matters, matrimonial causes in respect of marriages under customary law, debt, demand or damages claimed between persons married under customary law and custody of children under customary law. Thus, in these matters, the Court has unlimited jurisdiction i.e no limit as to the value of the subject matter involved. **The Land Use Act in section 39** confers jurisdiction of land situate in non-urban areas to the Customary Court. In **Adisa v. Oyinwola (2000) 10 NWLR (pt.116)**, the Supreme Court held that both the customary Court and State High Courts have concurrent jurisdiction in such matters.

Appeals lie to the Magistrate Court within the area of jurisdiction of the customary court that gave the decision if the Magistrate Court has original jurisdiction to try the matter. Where the Magistrate Court has no jurisdiction, the High Court where the Customary Court that gave the decision is located. They are composed of a president and such members as prescribed by the law.

Court of Resolution

It was first established in Northern Nigeria in 1960 pursuant to the provisions of the Court of Resolution Law 1960. It resolves conflict of jurisdiction between the Sharia Court of Appeal and the High Court. It comprises of the chief judge of the State who is the president of the Court, the Grand Kadi of the State and one judge of the Sharia Court of Appeal. When there is conflict which is referred to the court, the court will make a declaration as to the court that has jurisdiction over the matter. The decision of the Court is final and not subject to appeal.

Magistrate's Courts

The State Houses of Assembly is empowered by **section 6 (4) (a) of the 1999 Constitution (as amended)** to establish other courts other than superior courts of record. Their jurisdiction is limited to the magisterial district or division to which a magistrate is assigned. In States of Northern Nigeria, they are known as magistrate's court when they entertain criminal cases and as District Courts when they entertain only civil cases. Thus, Magistrate Court in the Southern Nigeria exercises both civil and criminal jurisdiction. They are Courts of inferior courts of record, their jurisdiction is limited as to the nature and value of the subject matter. They are Courts of summary jurisdiction in that they do not follow the elaborate procedures of the High Courts in their proceedings. Each State of the Federation is divided into magisterial Districts/Division and it is duly constituted with one magistrate.

District Courts

In Northern States, the Magistrates Courts assume the names of District Courts and the Magistrates are known as District judges when exercising civil jurisdictions. The District judges

are of various grades with maximum limits in the value of the subject matter which it has jurisdiction to entertain. Appeals from District Courts usually go to the High Courts.

Area Courts

In the North, the equivalent of customary court is the Area Court. In each State, the chief judge is empowered to issue warrants to define the territorial jurisdiction of the Courts. It is duly constituted by a judge sitting alone or with one or more members. Area Courts are of various grades like Upper Area Court, Area Courts Grade II and Area Courts Grade III. It has both civil or criminal jurisdiction but the warrant may either confer on it civil or criminal jurisdiction only. The civil jurisdiction are matrimonial causes between persons married under the native law and custom, custody of children under native law and custom, cases based on succession to property and the administration of estate under native law and custom etc.

Appeals from lower Area Court lies to the Upper Area Court. From the decision of Upper Area Court appeal lies to the Sharia Court of Appeal in cases involving questions of Islamic personal law and to the High Court in all other cases.

Juvenile Courts

By section 6 of the Children and Young Person's Law, the Chief judge of a State is empowered to constitute juvenile court for the purpose of hearing and determining cases relating to children and young persons. The Court is usually constituted with a magistrate sitting. Thus, each magistrate Court is a potential juvenile Court. A juvenile may be a child or a young person. By section 2 of the Young Person's Law, a child is a person under the age of 14 years, while a young person is one who is between 14 and 17 years of age. Juvenile courts are vested solely with criminal jurisdiction to try young persons and children except (a) where the charge is on homicide or (b) where the juvenile is charged jointly with adults. It should be noted that where a juvenile is charged with homicide or tried with adults, the trial must be done at regular courts. The sitting of a juvenile court shall be held either in a different building or room different from where other court sittings are held. **By the provision of section 6 (5) of the Children and Young Person's Law of Lagos State, the proceedings of a juvenile court shall be held in camera.** Thus, it is only the members, officers of the court, parties to the case and other persons directly concerned in the case, shall except by leave of the court be allowed to attend the court session.

When a juvenile is found guilty, the term "conviction" or "sentence" shall not be used. A child must not be ordered to be imprisoned. For a young person, he cannot also be ordered to be imprisoned where he/she can be dealt with in any other authorized way like probation, fine, corporal punishment or committal to an approved remand home. The court may also issue a corrective order committing him to the care of a relative or any other fit person.

The National Industrial Court

It was first established under the **Trade Dispute Decree No.7 of 1976**. In 1992, the Trade Disputes Act was amended by the Trade Disputes (Amendment) Decree now an Act. By reason of this amendment, the National Industrial Court was conferred with the status of a superior court of record. By the provision of section 254 of the Constitution, the National Industrial Court shall exercise exclusive jurisdiction relating to or connected with any labour, employment, trade unions, industrial relations and matters arising from work place, condition of service; including health, safety, welfare of labour, employee worker and matters incidental thereto or connected therewith. The National Industrial Court has power to establish an alternative dispute resolution centre. Appeals lie to the Court of Appeal. The National Industrial Court shall consist of a judge when sitting.

Election Tribunals

Election tribunals are also known as judicial tribunals. **By section 285 (1) & (2) of the 1999 Constitution (as amended)**, they have jurisdiction to hear and determine petitions as to whether any person has been validly...